

PERFORMANCE WORK STATEMENT
Fall Hazard Survey
Lookout Point Dam,
Lane County, Lowell Oregon

1.0 GENERAL STATEMENT

The Contractor shall provide a fall hazardous survey for Lookout Point Dam, Powerhouse, and adjacent structure located in 40386 W. Boundary Road Lowell, Oregon 97452. The Contractor shall perform to the standards in the contract and comply with all local, state, and federal regulations during the services performed.

This Firm Fixed Price Service Contract is for a duration of 1 (one) calendar day to perform fall hazard survey in **September of 2026**. Scheduling shall happen after service contract is awarded and to be performed within 60 days of award.

2.0 DEFINITIONS

Throughout this PWS, terms are defined as follows:

Contracting Officer (KO): The Government employee who is authorized to enter into, administer, and/or terminate contracts and make related determinations and findings.

Quality Assurance Evaluator (QAE): The Government employees responsible for checking Contractor performance.

Contract Discrepancy Report (CDR): A written record of unsatisfactory performance by the Contractor as observed by the Quality Assurance Evaluator (QAE)

Acceptance Quality Limits (AQL): A measurement of acceptable quality.

Defect: A service or product output that does not meet the standard of performance specified in the contract for that service or product.

Activity Hazard Analysis (AHA): A written record determining areas and activities in which possible safety hazards exist and proposed preventative measures.

Performance Requirements Summary (PRS): Identifies critical success factors for the contract. It identifies both the performance objectives for those factors and the performance threshold required for each performance objective. The Government reserves the right to survey all services called for in the contract to determine whether or not the performance objectives and goals were met.

Quality Assurance Surveillance Plan (QASP): A systematic method to evaluate the services the Contractor is required to furnish in accordance with the PWS and PRS.

Quality Control Inspector (QCI): A Contractor's employee responsible for monitoring and addressing issues with the quality of goods and services provided.

Quality Control Plan (QCP): A plan developed by the Contractor which includes quality control actions necessary to meet the quality standards set forth by the contract. The plan should be in compliance with the PWS. Once approved by the Government, the plan becomes a part of the QASP.

3.0 GOVERNMENT RESPONSIBILITIES

The Government will furnish access to Lookout Point Dam, Powerhouse, and adjacent structure.

4.0 CONTRACTOR RESPONSIBILITIES

A Job Safety Analysis, also known as Activity Hazard Analysis ((AHA) attachment 1), shall be prepared in accordance with EM-385-1-1 (attachment 2) and submitted as part of the Accident Prevention Plan for approval by the designated COR prior to initiation of the work tasks. The Job Safety Analysis shall be updated and resubmitted to the designated COR as warranted.

Contractor shall provide all necessary equipment, supplies, PPE, and materials to provide fall hazard survey site visit as well as the report that accompanies the survey.

A government representative shall accompany the Contractor at all times.

Photographs and video taken for purposes of this survey shall be considered “for official use only” and not distributed or used for other purposes than this survey.

A list of available equipment on site will be provided to the Contractor. Proposed solutions will incorporate equipment currently owned by the subject dams whenever possible.

5.0 PERFORMANCE REQUIREMENTS

5.1 TASK 1:

Hazard Assessment Site Visit. During the hazard assessment site visit the Contractor shall observe fall hazards, work procedures, interview workers, and gather necessary information for the report. The scope of this fall hazard survey is not to exceed one day of on-site hazard assessment with no more than 25 distinct fall hazards identified per site.

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5.2 TASK 2:

Data Analysis and Solutions. Data gathered during the site visit shall be analyzed by Fall Protection Qualified Engineers/Personnel for the development of fall protections solutions

Fall Protection Regulations. The Contractor shall comply with the latest issued safety regulations as directed by OSHA, the appropriate state agency, ANSI Z359 Fall Protection Code and the Corps of Engineers Safety Manual EM 385-1-1 (March 15, 2024). Should there appear to be conflicts in safety regulations, the Government Representative will designate the applicable regulation to be followed.

Survey Report. The survey report shall be written according to the following guidelines:

- (1) The report shall include an executive summary which describes:
 - The purpose of the report.
 - The survey (i.e., a survey was carried out by who and so on)
 - The number of hazard types and the total number of hazards identified.
 - The number of hazards surveyed and their relative percentages that are high risk, medium risk, and low risk.
 - Estimates for engineering, supply, and installation to remedy all hazards identified.
 - The layout of the report for unfamiliar readers to understand it easily.
- (2) The report shall include a short section to explain the technicality of the report including:
 - An explanation of the hazard ranking system and the resulting hazard index (i.e., what they mean, factors that affect the ranking, the calculations performed to come up with the hazard index, etc.).
 - A description on the kind of information that should be provided in the hazard description section of each hazard.
- (3) The report shall include a glossary and a briefly description of regulatory requirements and any other standards, codes, regulations, etc. that should be complied with.
- (4) The report should be divided into sections by locations within the Lookout Point Facility (e.g., powerhouse, turbine floor, transformer bank, intake, tailrace, miscellaneous, etc.) such that all hazards of a certain location will be captured under the same section in a numbered sequence. For example, the 2nd hazard surveyed at the Dexter Turbine Floor shall be coded as LOP-1.2., if 1 is used to represent turbine floor.
- (5) Include at least one photograph for each hazard. Identical hazards can be grouped together but the photograph should identify which unit is shown. Identical hazards are hazards that repeat from a generating unit to another where the characteristics such as the fall distance, frequency of exposure and the surrounding are identical. The photographs shall be touched up to show the recommended solution. This includes locations for installing engineered anchors, possible connecting points for workers if a temporary system is to be used, guardrails, ladder cages, lifelines, etc.
- (6) Each hazard should be ranked using a numerical ranking system. All factors used in establishing the ranking should be given. A table should be included with each hazard that shows all the ranking factors with their numerical values and a short explanation of the value. The rankings are meant to rank hazards at the site relative to each other and therefore the factors created should ensure a broad distribution of ranked values. At a minimum factor considered should include:
 - Frequency at location
 - Occurrence of fall hazard
 - Proximity of workers to hazard
 - Duration of worker exposure

- Interference with other workers
 - Security of workers
 - Environmental considerations
 - Probability of a fall
 - Severity of a fall
- (7) Describe the hazards in sufficient details to understand the task to be performed, the fall hazard, current approach and any other consideration Willamette Valley Project employees are educated in fall protection and the report should be written accordingly.
 - (8) The proposed solutions should be detailed. The solutions should describe which pieces of equipment from the list of equipment on site to be used in the solution (i.e., do they need a carabiner, SRL, etc.). A worker should be able to completely understand the proposed solutions without any ambiguity (i.e., should they use a 20-foot SRL or a lightweight 50 feet SRL, can they use their basic 6 feet shock absorbing lanyard or do they need an adjustable 6 feet. shock absorbing lanyard, etc.).
 - (9) The proposed solutions should include some relevant dimensions (length, width, height) for things such as catwalks, guardrails, ladders, etc. This will help the readers to understand the estimates better.
 - (10) The proposed solutions should specify any additional fall protection equipment that is required, which is not already provided at the site. A detailed list of equipment will be provided to the surveyor.
 - (11) Each hazard should include an estimate of the costs to implement the recommended solution. The costs should be broken down into engineering, supply and installation using reasonable industrial average. Estimates should be given in dollars and the number of installation man-hours should also be given.
 - (12) Any additional training that workers would require as a result of a proposed solution should be included.
 - (13) A hazard summary table that includes all hazards sorted by their rankings (high hazard to low hazard) must be included with the report. The summary table should include the risk rating, hazard number and location, short description of the hazard, the conceptual solutions, costs for material, installation and engineering, total cost, and type of system to be used (i.e., permanent, temporary, etc.). A second hazard summary is to be supplied which sorts all the hazards by hazard number (location).
 - (14) Each fall hazard must have a short discussion on rescue aspects associated with the hazard including:
 - Type of rescue (self or assisted).
 - What temporary means could be used to effect rescue?
 - What permanent systems/anchors are required, if applicable, to affect rescue.
 - (15) A survey report shall be bound with a spiral binding and provided with color photos. 2 paper copies shall be provided along with an electronic version in both Microsoft Word and Adobe PDF format emailed to Bonara.tan@usace.army.mil.

The following guidelines are for reference only and results shall be the determining factor for the success or failure of this contract. Performance shall be based on the Contracting Officer's or their designated representative's evaluation of performance and quality results, not the frequency or method of performance.

6.0 PERFORMANCE REQUIREMENTS SUMMARY

- 6.1 To ensure that the Government receives the services for which it contracted, the Government shall only pay for services received. The Performance Requirements Summary (PRS) determines if the Contractor meets the performance standards of the contract, as well as provides guidelines for how and when surveillance shall be performed. It ensures timeliness, effectiveness and that the Contractor is delivering the results specified in the contract. Government contract quality assurance shall be performed per the PRS surveillance schedule.
- 6.2 These are the criteria against which the performance be evaluated. Work shall be considered not to have been performed when any one of the following conditions exists in accordance with the Quality Assurance Surveillance Plan. Acceptable performance standards are below:

Performance Objective	Performance Standard	Validated Performance Threshold	Method of Surveillance
Hazard assessment site visit	Hazard assessment Site visit according to specifications outlined in section 5.0.	Specifications outlined in section 4.0.	None per contract
Survey report	The survey report shall be written according to the following guidelines specifications outlined in section 5.0.	Specifications outlined in section 5.0.	100% complete

- 6.3 **Surveillance.** Periodic inspections will be made by the COR, either through validation of reports provided by the contractor or through inspection methods, including the option to inspect each task to ensure conformance, in addition to complaints from project personnel and/or visitors regarding areas covered under this contract. If the COR discovers deficiencies and/or receives complaints, the COR will pass them on to the contractor's Quality Control for correction.
- 6.4 **Quality Control.** The Contractor, not the Government, is responsible for quality control actions necessary to meet the quality standards set forth by the contract. The Contractor shall develop and submit a Quality Control Plan (QCP) for Government approval within 14 days after contract award. Once accepted, the QCP becomes a part of the QASP. The QASP is not a contractual instrument and may be changed at the COR's discretion. The Contractor shall use the QASP to guide and document the implementation of the required management and quality control actions to achieve the specified results. The Government reserves the right under the Contract Terms and Conditions--Commercial Items (FAR 52.212-4) to inspect and test the services called for by the contract, to the extent practicable at all times and places during the term of the contract. The Government will reject non-conforming services.
- 6.5 **Unacceptable Performance.** When performance does not meet acceptable performance standards as defined in the Performance Requirements Summary table above, the QAE or COR will inform the contractor that performance is unacceptable and provide written documentation by use of the Form DD 2772, Contract Discrepancy Report. By initialing and dating the form, the Contractor is only acknowledging notification of unacceptable performance. Disputes in surveillance shall be referred to the KO.
- 6.6 If any of the services do not conform to contract requirements, the Contractor shall perform the services

again in conformity with contract requirements, at no increase in contract amount. When the defect(s) in services cannot be corrected by re-performance, the Government may:

- a. Require the Contractor to take necessary action to ensure future performance conforms to contract requirements.
- b. Reduce the contract price to reflect the reduced value of the services performed.
- c. If the Contractor fails to promptly re-perform the services, or to take the necessary action to ensure future performance in conformity with contract requirements, the Government may:

By contract or otherwise, perform the services and charge the Contractor any cost incurred by the Government that is directly related to the performance of such service; Terminate the contract for Government's convenience; or terminate the contract for Cause.

6.7 **Correction of Non-Performance of Work.** Contractor shall employ an adequate quantity of personnel to ensure that any area found to be not in compliance and therefore not acceptable, shall be made acceptable by the performance or re-performance of the work, where such re-performance is possible, during the first business day after noncompliance has been observed by or reported to and verified by the COR.

6.8 **Damages Caused by the Contractor.** Contractor shall be held accountable and liable to the Government for any damages to government facilities, fixtures, furnishings, equipment, or grounds caused by the Contractors or their employees.

6.9 **Interference with Government Operations.** Contractor and their employees shall perform all work in such a way as to not interfere with regularly scheduled Government operational activities.

7.0 **SECURITY, SAFETY, & ENVIRONMENTAL REQUIREMENTS.**

7.1 **Security Requirements.**

7.1.1 General. The Contractor, before initiating the performance of work, shall provide the COR with a list of all employees who shall perform work under this contract. The list shall include the full name, aliases, and work assignment of each employee. The Contractor shall notify the COR in writing of any addition, deletion or change in employee work assignment within one day of such change. Upon completion or reassignment individuals are required to return access cards/keys to the designated COR.

The Contractor shall complete access request forms (to be provided after contract award), with all required documents for all employees, prior to them coming onsite. The forms shall be submitted to the COR or designated representative a minimum of three business days prior to arriving on-site. Many employees at the Bonneville Project work four 10-hour days, so Friday should not be considered a business day for this purpose. Contractors cannot work onsite without an approved access request.

Any foreign nationals, including permanent citizens requesting access to the Bonneville Project, regardless of duration, must be approved by US Army Headquarters before initiating the Bonneville access request procedure. The COR will obtain the necessary documents from the Contractor. Please note the Foreign Visitor Authorization (FVA) process takes a minimum of 30 days. Contractor access requests will not be processed without an FVA.

7.1.2 Project Security. Project security is the responsibility of the Contractor. The Government will not accept responsibility for stolen or damaged equipment and materials. All equipment and materials shall be adequately secured by the Contractor to prevent theft or vandalism.

- 7.1.3 Access and General Protection/Security Policy and Procedures. All contractor and all associated sub-contractors' employees shall comply with applicable installation, facility and area commander installation/facility access and local security policies and procedures (provided by government representative). The contractor shall also provide all information required for background checks to meet installation/facility access requirements to be accomplished by installation Provost Marshal Office, Director of Emergency Services or Security Office. Contractor workforce must comply with all personal identity verification requirements (FAR clause 52.204-9, Personal Identity Verification of Contractor Personnel) as directed by DOD, HQDA and/or local policy. In addition to the changes otherwise authorized by the changes clause of this contract, should the Force Protection Condition (FPCON) at any installation or facility change, the Government may require changes in contractor security matters or processes.

7.2 Safety and Environmental Requirements.

- 7.2.1 The Contractor shall follow all safety regulations as set by the Occupational Safety and Health Administration (OSHA), Corps of Engineers Safety Manual EM 385-1-1, and project safe clearance procedures. A copy of the EM 385-1-1 can be downloaded at the following link:
http://www.publications.usace.army.mil/Portals/76/Publications/EngineerManuals/EM_385-1-1.pdf
- a. A Job Safety Analysis, also known as Activity Hazard Analysis (AHA), shall be prepared in accordance with EM-385-1-1 and submitted as part of the Accident Prevention Plan for approval by the designated COR prior to initiation of the work tasks. The Job Safety Analysis shall be updated and resubmitted to the designated COR as warranted.
 - b. Tools shall be equipped with manufacturer's recommended safety protective devices to ensure worker safety at all times. Tools shall be inspected daily by the Contractor and maintained in good working condition. All workers shall be properly trained in safe practices.
 - c. In the event that an accident or injury occurs to Contractor personnel, the Contractor shall notify the COR in a timely manner. The Contractor shall make a written report of each separate case of an injury or accident. The report shall include, but not be limited to; location, nature of the injury or accident, authorities notified, and the action taken along with any other pertinent information. The report shall be accompanied by sketches, graphs/drawings, and photographs as needed and forwarded to the COR within 24 hours.

Where conflicts in safety regulations occur, the COR shall designate the applicable regulation to be followed. Contractor employees shall wear personal protective equipment as required in accordance with EM 385-1-1.

- 7.2.2 Job Safety Analysis (JSA). The Contractor shall, during their on-site tour of the Project, determine those areas and activities in which possible safety hazards exist. The Contractor shall identify hazards in each phase of services performed and what preventive measures the Contractor proposes to take to prevent accidents. The JSA must be typewritten with a cover page. In accordance with EM 385-1-1, the Contractor shall prepare a Job Safety Activity Hazard Analysis for approval by the COR prior to commencement of work.
- 7.2.3 Public Safety. The Contractor shall maintain the public use areas so as to provide the best possible conditions for safe use by visitors. The Contractor shall be responsible for providing adequate personnel or barricades to ensure the safety of the general public and project personnel during window washing operations. Use of the Government owned first aid kits shall be reported immediately to the COR for refilling by the Government.

- 7.2.4 Accidents. The Contractor or the Contractor's employees shall report any circumstances of needed repair of the facility or unusual soiling of any area which may affect the performance of the work and unhealthful or hazardous conditions or any delays or interference with the work caused by the employees or the Government. In the event that an accident or injury occurs to Contractor personnel, the Contractor shall first notify the Lookout Point Control Room at 541-342-3072, and then the COR.
- 7.2.5 Accident Reports. The Contractor shall make a written report of each separate case of an injury or accident. The report shall include, but not be limited to; location, nature of the injury or accident, authorities notified, and the action taken along with any other pertinent information. The report shall be accompanied by sketches, graphs/drawings, and photographs as needed and forwarded to the COR within 24 hours.
- 7.2.6 Facility Access. The Government shall provide the Contractor access to the required installation and offices necessary for this PWS. The Contractor shall be subject to all Government rules and regulations while working at the Government installation. Access by the Contractor and Contractor's employees shall only be permitted during designated work hours. Contractor employees shall not be permitted to bring guests, family members, pets, or non-employees to the job site at any time. During check-in at the local control room, the Contractor should inform the operator of what services will be taking place at the other projects after leaving the control room. The Contractor will call the Operator before entering any of the other project powerhouse, dam, or intake tower locations. The Contractor will then call the operator to inform the operator that they have left the facility.

It is the responsibility of the Contractor to ensure that all articles of possible personal or monetary value found by or turned into the Contractor's employees be turned into the COR.

8.0 OTHER CONTRACT INFORMATION.

8.1 Contract Administration.

Contract will be administered by the following:

Department of the Army, Portland District, Corps of Engineers
P. O. Box 2946
Attn: CECT-NWP-X
Portland, Oregon 97208-2946

8.2 Invoice Submittals. Invoices shall be submitted as follows in accordance with FAR clause 52.212-4(g):

- i. Submit one electronic PDF invoice to Millington (USACE Finance Center) via email address: CEFC-G2invoices@usace.army.mil ; copy the COR on the invoice submission.
Email to Quenton Chocktoot, quenton.p.chocktoot@usace.army.mil

An invoice must include --

- i. Name and address of the Contractor (must be the same as stated within the System for Award Management;
- ii. Invoice date and number;
- iii. Contract number, line-item number, and the contract number;
- iv. Description, quantity, unit of measure, unit price, and extended price of the items delivered;
- ii. Name and address of official to whom payment is to be sent;
- iii. Name, title, and phone number of person to notify in event of defective invoice;

For invoice receipt verification or for a vendor's payment problem, the vendor may contact Millington at phone number (901) 873-9077.

- 8.3 **Insurance.** The Contractor shall, at its own expense, provide and maintain during the entire performance period of this contract, at least the kinds and minimum amounts of insurance required by this Clause as follows:

<u>TYPE</u>	<u>AMOUNT</u>
1) Workman's Compensation and Employer's Liability (including Federal Longshoremen and Harbor Worker's Insurance).	As legally required by the State wherein the work is being performed.
2) Comprehensive General Liability Insurance	Personal Injury Liability: \$1 million per person \$1 million per occurrence Property Damage (may be included in general aggregate limits or combined single unit coverage): \$1 million per occurrence
3) Automobile Liability	Personal Injury Liability: \$1 million per person \$1 million per occurrence Property Damage (may be included in general aggregate limits or combined single unit coverage): \$1 million per occurrence

4) If single general aggregate limits or combined single unit coverage is obtained for General Liability and/or Automobile Liability coverage, minimum amounts shall be the sum of the personal injury and property damage coverage required above. Umbrella Form Excess Liability insurance coverage shall be added to general liability and automobile liability coverage to determine if minimum insurance limits are met.

- 8.4 All vehicles used by Contractor personnel on project shall bear suitable company identification to enable project personnel to identify such as authorized for access. The Contractor will provide the COR with a list of vehicles and their license plates that will be used to perform work. Vehicles shall be in good working condition, not dripping oil, etc. Safety features on vehicles shall be working.

The Contractor shall be responsible for requiring each employee engaged in work to wear identifying uniform marked with identifying name of the Contractor. All employees shall wear name tags with their name prominently displayed.

The Government may require the contractor to discontinue using any employee in the performance of the work specified in this contract determined by the Government to be unsatisfactory.

- 8.5 **Contract Changes.** Changes in scope, time, or deliverables can only be authorized by the KO. The contractor shall notify the KO immediately if they have received direction to perform work outside the scope of the contract. Changes in scope will be negotiated and a written modification issued, before proceeding with the work.

- 8.6 **Government Holidays.** The Contractor is not required to work on the following federal holidays:

- New Year's Day
- Martin Luther King Birthday
- President's Day
- Memorial Day
- Labor Day
- Columbus Day
- Veteran's Day
- Thanksgiving Day

- Independence Day
- Christmas Day

8.7 **Walsh-Healey Public Contracts Act or the McNamara-O'Hara Service Contract Act (SCA).**

Every employer performing work covered by the Walsh-Healey Public Contracts Act or the McNamara-O'Hara Service Contract Act (SCA) is required to post a notice of the compensation required (including, for service contracts, any applicable wage determination) in a prominent and accessible location at the worksite where it may be seen by all employees performing on the contract.

A copy of the poster is available in two versions at the following DOL website:

<http://www.dol.gov/whd/regs/compliance/posters/sca.htm>. The rest of the content is subjective to each locations needs. There are the additional requirements that are to be observed by the contractor.

8.8 **Veterans Employment Emphasis for U.S. Army Corps of Engineers Contracts.**

U.S. Army Corps of Engineers (USACE) contractors and subcontractors at all tiers are encouraged to promote the training and employment of U.S. veterans while performing under a USACE contract. While no set-aside, evaluation preference, or incentive applies to the solicitation or performance under the resultant contract, USACE contractors are encouraged to seek out highly qualified veterans to perform services under this contract. The following resources are available to assist USACE contractors in their outreach efforts:

- U.S. Department of Labor Veterans employment: www.vets.gov/
- Federal veteran employment information: www.fedshirevets.gov/index.aspx
- Veterans' Employment and Training Service (VETS): <http://www.dol.gov/vets/>
- Veterans Opportunity to Work (VOW) Program: <http://benefits.va.gov/vow/>
- U.S. Army Warrior Transition Command Employment Index: <http://www.wct.army.mil/modules/employers/index.html>
- Hiring Our Heroes initiative: www.uschamberfoundation.org/hiring-our-heroes
- Guide to Hiring Veterans: www.whitehouse.gov/sites/default/files/docs/white_house_business_council_-_guide_to_hiring_veterans_0.pdf

9.0 **FORMS.**

Contractor Discrepancy Form: <http://www.esd.whs.mil/Portals/54/Documents/DD/forms/dd/dd2772.pdf>

Activity Hazard Analysis Form:

http://www.publications.usace.army.mil/Portals/76/Publications/EngineerManuals/EM_385-1-1.pdf

10.0 **GOVERNMENT POINTS OF CONTACT**

ASSIGNMENT	PERSONNEL	PHONE	EMAIL
Procurement Contracting Officer	Darrell D. Hutchens	971-270-8351	Darrell.D.Hutchens@usace.army.mil
Contracting Officer's Rep. (COR)	Quenton Chocktoot	541-521-0275	Quenton.P.Chocktoot@usace.army.mil
Contract Specialist (CS)	Raymie Briddell	503-808-4428	Raymie.L.Briddell@usace.army.mil
Quality Assurance Evaluator (QAE)			

11.0 **ATTACHMENTS**

The documents listed below are part of the Performance Work Statement and attached separately:

Attachment 1 - Activity Hazard Analysis Form, can also be found at the website below:

http://www.publications.usace.army.mil/Portals/76/Publications/EngineerManuals/EM_385-1-1.pdf

Attachment 2 EM 385-1-1